

Surya Prakash Singh v. U.P. Power Corporation Limited and others

High Court of Judicature at Allahabad · Division Bench · 26 April 2023 · Writ - C No. 11498 of 2023 · **Writ disposed; recovery withdrawn; fresh order after hearing under Supply Code.**

HEADNOTE

The writ against a Section 3 recovery citation and a consequential order for Rs.96,039 and other charges was disposed of on the electricity department's statement that the impugned recovery had been withdrawn. The respondents were left at liberty to pass a fresh order after the petitioner was allowed to file objections and be heard, strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Surya Prakash Singh filed a writ against U.P. Power Corporation Limited and three others challenging a demand notice dated 17 November 2020 issued under Section 3 of the U.P. Government Electrical Undertakings (Recovery of Dues) Act, 1958, and a consequential recovery order dated 22 December 2020 of respondent no. 2, for Rs.96,039 and other charges. On 7 April 2023 the Court gave the department time to obtain instructions and directed that no coercive action be taken on the notice. On 18 April 2023 that interim order was extended.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.7.4

Fresh order after hearing under the Supply Code

HOLDING

On the licensee's statement that the impugned recovery had been withdrawn and that a fresh order would be passed after an opportunity to file objections and be heard, the writ was disposed of with liberty to the respondents to pass that fresh order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. ¶ 3

FLAG Order cites the Electricity Supply Code, 2005 generally and does not number clause 7.7.4.

PRINCIPLE TAGS

fresh-order-strictly-under-supply-code Once the licensee withdrew the Section 3 recovery and undertook to pass a fresh order after objections and hearing, the writ was disposed with liberty to do so only by the procedure prescribed under the Electricity Supply Code, 2005. The Court did not decide the demand on merits. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS LIABLE FOR RS.96,039 AND OTHER CHARGES, AND WHETHER THE WITHDRAWN SECTION 3 CITATION WAS LAWFUL.

Left to a fresh order after objections and hearing, strictly in accordance with the Electricity Supply Code, 2005. ¶ 3